



CODE OF CRIMINAL PROCEDURE (AMENDMENT) ORDINANCE, 2002

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CODE OF CRIMINAL PROCEDURE (AMENDMENT) ORDINANCE, 2002.

ORDINANCE XV of 2002

An

Ordinance

further to amend the Code of Criminal Procedure, 1898

WHEREAS it is expedient further to amend the Code of Criminal Procedure, 1898 (Act V of 1898), for the purpose hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exists which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all other powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may be called the Code of Criminal Procedure (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 371 (Act V of 1898). In the Code of Criminal Procedure, 1898 (Act V of 1898), in section 371, in sub-section (1), for the proviso the following shall be substituted, namely:-

“Provided that this subsection shall not apply to cases tried summarily.”.

3. Insertion of a new section 131A, (Act V of 1898). In the said Code, after section 131, the following new section shall be inserted, namely:-

"131A. Power to use military force for public security and maintenance of law and order.-

(1) If the Provincial Government is satisfied that, for the public security, protection of life and property, public peace anti the maintenance of law and order, it is necessary to secure the assistance of the armed forces or civil armed forces, the Provincial Government may require, with the prior approval of the Federal Government, or the Federal Government may on its own or on the request of the Provincial Government direct any officer of the armed forces or civil armed forces not below the rank of a JCO or equivalent to render such assistance with the help of the forces under his command, and such assistance shall include the exercise of lowers specified in sections 46 to 49, 53, 54, 55 (a) (c), 58, 61, 64 to 67, 102 and 103 for a particular area defined

in the notification for a limited period of thirty days extendable by another period of thirty days, as the circumstances may warrant:

Provided that such powers shall not include the powers of Magistrate.

(2) Every such officer shall obey such requisition or direction, as the case may be, and in doing so may use such force as the circumstances may require.

(3) In rendering assistance relating to exercise of powers specified in subsection (1), every officer shall, as far as may be, follow the restriction and conditions laid down in the Code."
